

		Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) The Court finds that the Tech Bilt factors weigh in favor of finding that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was reached in good faith and therefore the Application for Determination of Good Faith Settlement is GRANTED. Moving party to give notice.
107	Hamidian vs. Avis Budget Group, Inc. 20-01174350	1. Motion for Determination of Good Faith Settlement x 2 2. Motion to Contest Good Faith Settlement 1) Motion for Determination of Good Faith Settlement Defendants, Avis Budget Group, Inc. (“Avis”) and County of Orange (collectively, “Defendants”) move for an order determining that the settlement between Plaintiff, Afsaneh Hamidian (“Plaintiff”), and Defendants was made in good faith, and that the Court dismiss, with prejudice, any and all complaints and cross-complaints in favor of Defendants in this action pursuant to California Rules of Court, rule 3.182, and bar any future claims against Defendants for equitable comparative contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault, pursuant to Code of Civil Procedure section 877.6. No opposition has been filed. Code of Civil Procedure section 877.6 provides in pertinent part:

		(a)(1) Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. ... [¶] ... [¶] (b) The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counter affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing. (c) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (d) The party asserting the lack of good faith shall have the burden of proof on that issue. (Code Civ. Proc. § 877.6(a)-(d).) Under the statute, the burden of proof is on the party opposing the good faith determination. (Code Civ. Proc. § 877.6(d).) Thus, absent any challenge, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (City of Grand Terrace v. Superior Court (1987) 192 Cal. App. 3d 1251, 1261.) In other words, only when the application is contested or a motion for good faith
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		determination is opposed does the court consider and weigh the Tech-Bilt standards. (Ibid.) Here, although Defendants filed a motion, there is no challenge or opposition. The evidence submitted indicates that Plaintiff and Defendants, Avid Budget Group, Inc. and County of Orange reached a settlement in the amount of \$400,000. (ROA 466, Declaration of Jennifer Caponegri (“Caponegri Decl.”), ¶¶ 1, 3-4.) Defendants’ counsel also provides that Plaintiff alleged various personal injuries from the subject incident, including but not limited to a right shoulder surgery, a cervical spine surgery and facial plastic surgery procedures, and that Plaintiff’s known medical bills total \$282,008.33, with insurance adjustments to \$110,118.76. (Id., ¶ 2.) The motion sets forth the ground of good faith for the settlement being that the settlement amount is fair as to Defendants’ proportionate liability in light of the evidence establishing that Jeff Oviedo & Associates, Inc. and CTG Construction Inc. share liability for the subject incident, and that but for the failures of Jeff Oviedo & Associates, Inc. and CTG Construction Inc. to shave down the bolts when they relocated the key box, the subject incident would not have occurred, as well as that Project Manager, Jeff Oviedo & Associates, Inc. accepted responsibility for failing to shave down the bolts after relocating the key box with the subcontractor, CTG Construction Inc. The motion also provides a brief background of the case in that the matter arises from an incident that occurred on September 2, 2020, in the John Wayne Airport parking garage in Orange County; that the John Wayne Airport parking garage was undergoing renovations as part of a reconfiguration project; that the renovations
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		required that an Avis key box be moved; that the Project Manager, Jeff Oviedo & Associates, Inc., engaged subcontractor, CTG Construction Inc., to assist in relocating the key box; that upon relocation, two bolts were left exposed where the key box had been removed; that Plaintiff was walking when she tripped on the bolts; and that an employee of Jeff Oviedo & Associates, Inc. accepted responsibility for failing to shave down the bolts. Based on the showing above, the Court GRANTS Defendants, Avis and County of Orange’s motion for determination of good faith settlement. The Court GRANTS Defendants’ request to dismiss Plaintiff’s Complaint as to Defendants only. (Code Civ. Proc. § 877.6(c); California Rules of Court, rule 3.1382.) Defendants do not indicate or specify that there is any current cross-complaint brought against either of them containing claims barred by Code of Civil Procedure section 877.6(c).) Defendants Avis and the County of Orange are to give notice. 2) Motion for Determination of Good Faith Settlement and 3) Motion to Contest Good Faith Settlement Defendant/Cross-Defendant/Cross-Complainant, CTG Construction, Inc. (“CTG”), moves for an order determining that the settlement between Plaintiff, Afsaneh Hamidian (“Plaintiff”), and CTG was made in good faith. CTG also requests dismissal with prejudice as to any and all complaint and cross-complaints in favor of CTG in this action, pursuant to California Rules of Court, rule 3.1382, and bar any future claims against Defendant for equitable comparative
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contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault, pursuant to Code of Civil Procedure section 877.6.

In response, Defendant/Cross-Defendant/Cross-Complainant, Jeff Oviedo & Associates, Inc. (“JOA”) moves to contest Defendant/Cross-Defendant CTG’s application for determination of good faith settlement with respect to its settlement reached with Plaintiff.

As a threshold matter, CTG has filed a motion for determination of good faith settlement, not an application which may be brought in the alternative. Code of Civil Procedure section 877.6 provides in pertinent part:

(a)(1) Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. ... [¶] ... [¶]

(Code Civ. Proc. § 877.6(a)(1).)

As a result, JOA did not properly bring a “motion to contest,” which applies to an application for the determination of good faith settlement. (Code Civ. Proc. § 877.6(a)(2).) Nevertheless, given CTG’s substantive and timely opposition to JOA’s motion to contest, and the timely reply, the Court considers JOA’s motion to contest and all opposing and reply papers in conjunction with CTG’s motion for determination of good faith settlement.

Merits

Code of Civil Procedure section 877.6 provides in pertinent part:

(b) The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counter-affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.

(c) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.

(d) The party asserting the lack of good faith shall have the burden of proof on that issue.

(Code Civ. Proc. § 877.6(a)-(d).)

The settling parties' evidence may be provided either in support of the initial motion or as "responsive counter declarations to negate the lack of good faith asserted by the non-settling contesting party." (City of Grand Terrace v. Superior Court (1987) 192 Cal. App. 3d 1251, 1262 ("City of Grand Terrace").)

The intent and policies underlying a determination of a good faith settlement under section 877.6 require that a number of factors be taken into account. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499, internal citations omitted ("Tech-Bilt").) These factors include:

		· A rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, · The amount paid in settlement, · The allocation of settlement proceeds among plaintiffs, · A recognition that a settlor should pay less in settlement than he would if he were found liable after a trial, · The financial conditions and insurance policy limits of settling defendants, and · The existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants, and · The settling defendant’s potential liability for indemnity to a non-settling defendant. (Ibid.; Far West Financial Corp. v. D & S Co. (1988) 46 Cal.3d 796, 816 (“Far West”).) There is no precise yardstick for measuring “good faith” of a settlement with one of several tortfeasors, but it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the “reasonable range” (within the “ballpark”) of the settling tortfeasor’s share of liability for the plaintiff’s injuries. (Tech-Bilt, Inc., supra, 38 Cal. 3d at p. 499.) “Equity is the aim of section 877.6. The dual equitable goals of section 877.6 are: ‘equitable sharing of costs among the parties a
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(Long Beach Mem. Med. Ctr. v. Superior Court (2009) 172 Cal.App.4th 865, 872, inner citation omitted.)

“[W]hether a settlement is in good faith is a matter left to the discretion of the trial court.” (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal. App. 4th 1337, 1349.) “The trial court’s discretion, however, in ruling on a motion under section 877.6 is not unlimited and should be exercised in view of the equitable goals of the statute, in conformity with the spirit of the law and in a manner that serves the interests of justice.” (Long Beach Mem. Med. Ctr. v. Superior Court (2009) 172 Cal.App.4th 865, 873 [disapproving settlement of \$200,000 for a \$2 million claim where there was evidence that settling physician was at fault and his liability was not de minimis] c.f. Cahill v. San Diego Gas & Elec. Co. (2011) 194 Cal.App.4th 939, 963-964 [trial court did not abuse its discretion in approving homeowners’ settlement of \$25,000 for \$40 million claim where trial court determined damages claim was exaggerated and plaintiff lacked any viable theory of liability against homeowners].)

Here, CTG contends that its settlement with Plaintiff in the amount of \$500,000 is in good faith and is within the Tech-Bilt ballpark in light of the fact that the project manager of JOA accepted responsibility for failing to shave down the bolts after relocating the key box; that the settlement amount takes into consideration that CTG should pay less in settlement than it would if it was then found liable after a jury trial; that CTG is paying its proportionate share, and that the settlement amount is not grossly disproportionate to its share of liability as Plaintiff’s known medical bills total \$282,008.33 with insurance adjustments to \$101,118.76. CTG

asserts that the settlement of \$500,000 is solely allocated to Plaintiff; that CTG's financial condition and self-insurance does not defeat good faith settlement; and that there is no evidence of collusion, fraud, or tortious conduct as the settlement was the product of a compromise facilitated by arm's length negotiations between counsel after three mediation settlements and continued negotiations.

In its motion to contest, JOA contends that the proposed settlement of \$500,000 does not meet the Tech-Bilt factors because CTG's settlement is disproportionate to CTG's potential liability as it is only 14.7% of the damages sought by Plaintiff in her last settlement demand of \$3.4 million; that CTG was the general contractor responsible for the renovation project at John Wayne Airport during which the subject Incident occurred; that CTG's foreman, Jose Peralta was present and physically removed the Avis Key drop box that created the hazardous condition; and that CTG had established throughout this same project a clear and documented pattern of grinding down exposed bolts after fixture removal as mandated by the project's construction documents and confirmed by CTG's own Person Most Knowledgeable, Alex Campos, who admitted that whoever removed the key box "should have known to grind down the bolts." JOA also contends that the fifth Tech-Bilt factor — the financial condition and insurance policy limits of the settling defendant — further demonstrates that CTG's settlement is grossly inadequate as CTG's liability insurance policy applicable at the time of the Incident carries limits of \$2,000,000, and the proposed settlement of \$500,000 represents only 25% of CTG's available policy limits. JOA further asserts that this Court's inquiry under Tech-Bilt

must account for the fact that a good faith determination bars not only Plaintiff's claims but also JOA's cross-claims for indemnity and contribution against CTG, that the true value of the settlement to CTG is therefore not merely \$500,000 paid to Plaintiff, but is the extinguishment of all indemnity exposure to JOA as well, and that CTG's settlement prejudices JOA as a non-settling defendant given that JOA maintains a cross-complaint against CTG for indemnity and contribution, including under a theory of express contractual indemnity, and a finding of good faith settlement would bar JOA's cross-claims against CTG entirely.

Amount Paid in Settlement. The evidence submitted indicates that a settlement has been reached between Plaintiff and Defendant CTG in the amount of \$500,000. (ROA 472, Declaration of Wayne W. Watten ("Watten Decl."), ¶¶ 3-4.)

Rough Approximation of Plaintiff's Total Recovery and Settlor's Proportionate Liability. The most important factor is the settling party's proportionate liability. (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal. App. 4th 1337, 1350 ("Mattco Forge").) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be. (Grand Terrace, supra, 192 Cal. App. 3d at p. 1262.) There must be substantial, competent evidence of the settling parties' proportionate liability and all other Tech-Bilt factors before the court may grant a motion for good faith settlement in a contested case. (Mattco Forge, Inc., supra, 38 Cal.App.4th at p. 1351.) Under the statute, the burden of proof is on the party opposing the good faith determination. (Code Civ. Proc. § 877.6(d).)

“[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.” (Tech-Bilt, supra, 38 Cal.3d at p. 499, citations omitted.) “When testing the good faith of a settlement figure, a court may enlist the guidance of the judge’s personal experience and of experts in that field.” (Id. at pp. 499-500.)

Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement may not be the amount paid to plaintiff but rather the value of the shield against such indemnity claims. (Far West, supra, 46 Cal.3d at p. 816, fn. 16; TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 166; accord, PacifiCare of Cal. v. Bright Medical Associates, Inc. (2011) 198 Cal.App.4th 1451, 1465.)

Here, this action arises out of a trip-and-fall accident on September 2, 2020, at John Wayne Airport, owned by Defendant/Cross-Complainant, County of Orange. (ROA 572, Declaration of Matthew G. Whitten (“Whitten Decl.”), ¶ 2.) Plaintiff alleges she tripped on two bolts protruding from the ground near the Avis rental office inside the terminal and fell, suffering personal injuries (the “Incident”). (Ibid.) Plaintiff claims general and special damages, including pain and suffering, mental and emotional distress, and past and future medical care arising out of the subject incident. (Ibid.) There is no dispute that this Incident occurred during the reconfiguration of rental car kiosks and locations in the parking terminal adjacent to the airport. (Id., ¶ 3; Declaration of Wayne W. Watten in Opposition to Motion to Contest (“Opp Watten Decl.”), ¶ 3.) JOA served

		as the project manner for the reconfiguration of the rental car kiosks. (Whitten Decl., ¶ 5.) JOA contends that the settlement of \$500,000 is grossly disproportionate to CTG’s proportionate liability because it reflects only 14.7% of the damages sought by Plaintiff in her last settlement demand of \$3.4 million. JOA provides that Plaintiff’s last global settlement demand was made in August 2025 in the amount of \$3,400,000. (Whitten Decl., ¶ 10.) However, “a plaintiff’s claims for damages are not determinative in finding good faith; rather, the court is called upon ‘to make a “rough approximation” of what the plaintiff would actually recover’ [citation], with the evaluation to be made ‘on the basis of information available at the time of settlement.’ [Citation.]” (Dole Food Co. Inc. v. Superior Court (2015) 242 Cal.App.4th 894, 904.) JOA provides no evidence supporting Plaintiff’s global settlement demand constitutes a rough approximation of what Plaintiff would actually recover. Thus, Plaintiff’s global settlement demand upon which JOA relies does not establish a rough approximation of Plaintiff’s total recovery. Instead, CTG provides that Plaintiff’s known medical bills total \$282,008.33 with insurance adjustment to \$101,118.76. (Watten Decl., ¶ 2.) JOA provides that Plaintiff’s medical billing expert, Andrew S. Morris, D.C., reviewed all past medical bills and opines that \$140,827.62 is the total reasonable value for Plaintiff’s past medical bills of \$411,091.62, and that the reasonable cost of Plaintiff’s future medical care ranges from a minimum of \$479,220 to a maximum of \$488,380. (Whitten Decl., ¶¶ 8-9, Ex. E.)
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Neither party provides the information that was available at the time of settlement. However, given that CTG's Notice of Settlement that was filed with its motion for determination of settlement is dated February 26, 2026, and Dr. Morris' expert report is dated March 4, 2026, and the letter opining as to future medical care costs is dated March 2, 2026, it does not appear that Dr. Morris' expert report or letter was available at the time of CTG's settlement with Plaintiff. Even if Dr. Morris' opinions as to past and future medical damages are considered, they do not support that Plaintiff's rough approximation of total recovery is \$3,400,000. Instead, based on Dr. Morris's numbers, the total value of Plaintiff's past and future medical expenses totals \$629,207.62, at the high end. CTG's settlement of \$500,000 is 79.5% of the reasonable value of Plaintiff's past and future medical expenses.

JOA also asserts that CTG was the general contractor responsible for the renovation project at John Wayne Airport during which the subject Incident occurred. JOA provides that it served as the project manager of the reconfiguration project, and that on December 12, 2019, CTG was contracted by the County of Orange to act as the general contractor for the reconfiguration project for Job Order Contract MA-080-20010450. (Whitten Decl., ¶¶ 4-5, Ex. B.)

On the other hand, CTG provides evidence that the County of

Orange provided a Notice of Completion as to Phases 1 and 2 and a supplemental work order stating that construction was completed on June 23, 2020, as well as providing copies of the County of Orange purchase orders associated with the same, and a copy of a separate Job Order Contract MA-080-20010440 for Painting

Services between the County of Orange and CTG. (Opp Watten Decl., ¶¶ 4-7, Exs. A-D.)

Based on the foregoing, while JOA presents evidence of a general contractor contract, it does not establish that CTG was functioning as the general contractor for the reconfiguration project under Job Order Contract MA-080-20010450 at the time of the Incident on September 2, 2020.

JOA next asserts that CTG was directly involved in the removal of the subject drop box as on the morning of September 2, 2020, Jose Peralta, CTG's foreman, and Benajmin Oviedo, JOA's project manager were both present during the removal of the key drop box, and Jose Peralta physical removed the Avis key drop box. In support of these assertions, JOA provides excerpts of the deposition testimony of Ben Oviedo of JOA (Whitten Decl., ¶¶ 6, Ex. C.)

CTG disputes that Jose Peralta removed the key drop box, and provides Jose Peralta's deposition testimony where Peralta testifies that he has never removed or relocated a key drop box. (Watten Decl., ¶ 10, Ex. G.) CTG also provides excerpts of the deposition testimony of Alex Campos, the person most knowledgeable at CTG, who testifies that they were never given instruction to remove a key box, that he has no knowledge of anyone in the company removing the key box, that he does not know who removed the key box, that it was not their responsibility to remove the drop boxes, and that Andrew Weeks said not to get involved with moving the drop box. (Watten Decl., ¶ 11, Ex. H.) CTG additionally provides a copy of an email from Ben Oviedo dated September 8, 2020, where he states, in part: "I forgot to ask the contractor to shave down the bolts or at least put a cone on

there. It was my fault, and take responsibility for what happened.” (Watten Decl., ¶ 8, Ex. E.)

The evidence presented by the parties indicates that the extent of CTG’s proportionate liability is disputed, but as between JOA and CTG, tends to support 50% liability, at the most, for the Incident. As noted above, CTG’s settlement of \$500,000 is 79.5% of the reasonable value of Plaintiff’s past and future medical expenses based on the evidence provided by JOA. The burden of showing bad faith falls on JOA as the party opposing the good faith settlement determination, but JOA provides no evidence as to an approximation of Plaintiff’s damages for pain and suffering.

The Settling Defendant’s Potential Liability for Indemnity to a Non-Settling Defendant JOA asserts that it would be prejudiced if the motion for determination of good faith settlement was granted as it maintains a cross-complaint against CTG for indemnity and contribution, including under theories of express and equitable indemnity, which claims would be barred. However, JOA provides no support that any of its crossclaims for contribution or equitable indemnity have merit, or otherwise shows CTG’s potential liability for indemnity to JOA. JOA does not discuss, or provide evidence sufficient for the Court to evaluate, the value to shield against such indemnity claims.

Based on the foregoing, the evidence submitted to the Court supports that the amount of CTG’s proportionate liability is greatly contested but would not appear to be more than 50% such that CTG’s settlement with Plaintiff in the amount of \$500,000 in view of Plaintiff’s current and future damages, is proportionate to CTG’s possible liability.

As such, CTG's \$500,000 settlement with Plaintiff does not appear to be grossly disproportionate to what a reasonable person might estimate CTG's liability would be, and the settlement is within the ballpark of CTG's liability. JOA does not meet its burden of proof to show that CTG's settlement with Plaintiff lacks good faith.

Financial Conditions and Insurance Policy Limits. A settling defendant is not required to present any evidence of its financial condition or liability insurance policy limits. Instead, the party that contends that the settlement was not made in good faith and that has the burden of proof on the issue may present evidence on those issues to show that the settling party had the financial capacity or insurance coverage limits to pay a reasonable settlement amount. (Cahill v. San Diego Gas & Elec. Co. (2011) 194 Cal.App.4th 939, 968.)

Given that the settlement between Plaintiff and CTG appears reasonable and proportionate with CTG's liability's, CTG's insurance coverage limits of \$2,000,000 is irrelevant.

As for the remaining Tech-Bilt factors, JOA does not dispute that there is a recognition that a settlor should be pay less in settlement, that the entire settlement amount is allocated to Plaintiff, and that there is no evidence of fraud or collusion.

In consideration of the above, the Court GRANTS CTG's motion for determination of good faith settlement and DENIES JOA's motion to contest CTG's motion for determination of good faith settlement.

Request for Dismissal

		CTG requests dismissal with prejudice any and all complaints and cross-complaints in favor of Defendant in this action, pursuant to California Rules of Court, rule 3.1382, and any future claims against CTG for equitable comparative contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault be barred pursuant to Code of Civil Procedure section 877.6. “A motion or application for determination of good faith settlement may include a request to dismiss a pleading or a portion of a pleading. The notice of motion or application for determination of good faith settlement must list each party and pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed.” (California Rules of Court, rule 3.1382.) “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc. § 877.6(c).) “[A] tort defendant who has entered into a good faith settlement within the meaning of section 877.6, subdivision (c) is absolved of any further liability for all equitable indemnity claims, including claims seeking total equitable indemnity.” (Far West Financial Corp. v. D&S Co. (1988) 46 Cal.3d 796, 817.) An implied contractual indemnity is a form of equitable indemnity so that a good faith settlement relieves a settling defendant from a further claim for indemnity based on an implied contractual indemnity theory. (Bay Development, Ltd. v. Superior Court (1990) 50 Cal.3d 1012, 1029-
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		1031.) However, a good faith settlement would not preclude an indemnity action based on an express indemnity agreement. (Id. at p. 1032.) The Court GRANTS CTG’s request to dismiss, with prejudice, Plaintiff’s Complaint as against CTG. The Court GRANTS CTG’s request to dismiss, with prejudice, JOA’s Cross-Complaint (ROA 173), but only as to the causes of action for Implied Equitable Indemnity and Contribution which are barred by Code of Civil Procedure section 877.6(c.) CTG to give notice.
108	White vs. Smart Health Diagnostics Company 25-01521881	Motion to Seal Plaintiff Lance White filed a motion to seal the following document: (1) unredacted Request for Entry of Default, (2) unredacted Judgment, (3) unredacted Declaration of David A. Lowe in Support of Plaintiff’s Motion, and (4) unredacted Declaration of Lance White in Support of Plaintiff’s Motion conditionally lodged under seal on March 13, 2025. The Motion is unopposed. On March 23, 2026, the parties filed a “Joint Stipulation to Dismiss Action and for Court to Retain Jurisdiction to decide Motion to Seal.” (ROA 79.) On March 27, 2026, Plaintiff Lance White filed a Request for Dismissal without prejudice as to the entire action of all parties and all causes of action with the Court retaining jurisdiction. (ROA 83.) Given the above, the Motion is VACATED.